

IN THE MAGISTRATE COURT OF Fulton COUNTY, GEORGIA

Peach State Properties, LLC

, Plaintiff,

vs.

John Doe

, Defendant.

Case No.:

24D0012345

EMERGENCY MOTION TO STAY EVICTION

COMES NOW the Defendant, John Doe, appearing pro se, and respectfully moves this Honorable Court for an emergency order staying the eviction proceedings currently pending against Defendant, and in support thereof states as follows:

1. PARTIES AND JURISDICTION

Defendant John Doe is the tenant residing at 857 Peachtree Street NE, Atlanta, GA, 30309. Plaintiff Peach State Properties, LLC is the landlord of the subject property. This Court has jurisdiction over this eviction matter pursuant to O.C.G.A. Title 44, Chapter 7.

2. GROUNDS FOR EMERGENCY STAY

- Financial Hardship and Good Faith Effort:** I need time to secure rental assistance and avoid displacement while my application is pending.
- Need for Additional Time:** Defendant requires additional time to arrange payment, explore rental assistance programs, or secure alternative housing. An immediate eviction would cause substantial hardship and potential homelessness.
- Preservation of the Status Quo:** A temporary stay will preserve the status quo and allow Defendant the opportunity to present a full defense to the Court, explore settlement options with Plaintiff, and avoid the irreparable harm of displacement without adequate time to prepare.
- Minimal Prejudice to Plaintiff:** Granting a brief stay will not substantially prejudice Plaintiff. Defendant is committed to maintaining the property in good condition during any stay period. The Court may impose conditions on the stay, including requiring Defendant to pay ongoing rent or deposit funds into the court registry, to protect Plaintiff's interests.

3. IRREPARABLE HARM

Without an emergency stay, Defendant faces the imminent threat of displacement from the home. Defendant has limited resources and would suffer irreparable harm, including potential homelessness, loss of personal property, disruption of employment, and severe emotional and financial distress. The harm to Defendant far outweighs any temporary inconvenience to Plaintiff.

4. RELIEF REQUESTED

WHEREFORE, Defendant John Doe respectfully requests that this Honorable Court:

- Grant an emergency stay of all eviction proceedings for a period of days, or such other period as the Court deems just and appropriate:

Number of days:

B. Schedule an expedited hearing on this Motion to allow Defendant to present evidence and explore resolution options;

C. Impose any conditions on the stay that the Court deems appropriate to protect the interests of both parties;

D. Grant such other and further relief as the Court deems just and proper.

Respectfully submitted this ____ day of _____, 20____.

Name:

John Doe

Address:

857 Peachtree Street NE, Atlanta, GA, 30309

Phone:

(404) 555-0167

Email:

john.doe.ga@example.com

Pro Se Defendant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Emergency Motion to Stay Eviction was furnished to Peach State Properties, LLC at 3344 Piedmont Road NE, Atlanta, GA 30305 on this ____ day of _____, 20____.

Served by:

☐

U.S. Mail

☐

Hand Delivery

☐

Email